

Multiple Choice (10 marks)

1. Which of the following will not terminate a contract by operation of law?
 - (a) Death or insanity of a party.
 - (b) Partial performance
 - (c) Destruction of the subject matter of contract.
 - (d) Supervening illegality
2. Buyer is purchasing a bicycle based on the salesperson's understanding of buyer's goals and seller's knowledge. What kind of warranty might this be considered?
 - (a) Warranty of Fitness for Particular Purpose.
 - (b) Warranty of Merchantability
 - (c) Express
 - (d) Implied
3. Which of the following is not an element of common law burglary?
 - (a) A breaking and entry
 - (b) Of a dwelling, of another
 - (c) During the daytime
 - (d) With the intent to commit a felony therein.
4. Which of the following types of regulations would not be reviewed under the strict scrutiny standard of review?
 - (a) Gender
 - (b) Interstate travel
 - (c) Privacy
 - (d) Alienage
5. Under common law principles, which of the following is not correct regarding the duty owed by a possessor of land towards an undiscovered trespasser?
 - (a) No duty for artificial conditions.
 - (b) A duty for natural conditions.
 - (c) No duty for natural conditions.
 - (d) No duty for active operations.

True / False (10 marks)

Answer True or False

6. True or False: An indigent person has the Sixth Amendment right to counsel during all stages of the criminal process, including investigative surveillance.
7. True or False: In the case of a conflict between a congressional act and a valid treaty, the principle of the last in time prevails.
8. True or False: Under the enabling clause of the Fourteenth Amendment, a state can regulate state officials from discriminating based on race.
9. True or False: A substantive due process problem arises when all individuals are denied their fundamental rights, regardless of the circumstances.
10. True or False: An irrevocable offer under the Uniform Commercial Code can be made orally without any written assurance of its duration.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the implications of contract termination by operation of law, analyzing why partial performance does not qualify as a valid reason for termination.
12. Discuss the legal principles surrounding attempted crimes in common law, using the scenario of a defendant attempting to commit arson for insurance fraud as a case study. Analyze the factors that contribute to her potential guilt or innocence.

End of Paper